



Terms and Conditions

AppleCare+ for iPhone

AppleCare+ for iPad

AppleCare+ for iPod

AppleCare+ for Apple Watch

How Consumer Rights Affect this Plan

THE BENEFITS CONFERRED BY THIS PLAN ARE IN ADDITION TO ALL RIGHTS AND REMEDIES PROVIDED UNDER CONSUMER PROTECTION LAWS AND REGULATIONS. THIS PLAN SHALL NOT PREJUDICE THE RIGHTS GRANTED BY APPLICABLE CONSUMER LAW, INCLUDING THE RIGHT TO RECEIVE REMEDIES UNDER STATUTORY WARRANTY LAW AND TO SEEK DAMAGES IN THE EVENT OF THE NON-PERFORMANCE BY APPLE OF ANY OF ITS CONTRACTUAL OBLIGATIONS.

1. The Plan.

This contract (the "Plan") governs the hardware service and technical support provided to you by Apple under the above-mentioned plans paid for on either a one-time basis ("Single Pay") or a monthly basis ("Monthly Pay"). The Plan covers the Apple-branded iPhone, iPad, iPod or Apple Watch and the Apple-branded accessories contained in its original packaging ("Covered Device") listed on your proof of coverage document ("Plan Confirmation"). Unless otherwise noted, all terms apply equally whether paid for under Monthly Pay or Single Pay. Further, please note that the benefits under AppleCare+ for Apple Watch are not available for Apple Watch Edition. Apple will also provide hardware service and technical support coverage for an AirPort Express or an AirPort Extreme Base Station, and an AirPort Time Capsule product ("iPad Connectivity Device") if the iPad Connectivity Device is used with an iPad covered under the AppleCare+ for iPad and purchased no earlier than two years before the covered iPad. (For purposes of this service contract, the Covered Device and, if applicable, the iPad Connectivity Device are referred to collectively as, the "Covered Equipment").

2. When Coverage Begins and Ends.

Coverage begins when you purchase the Plan. The "Plan Term" means the date your Plan begins as per the preceding sentence and, unless cancelled, ends on the date specified in your Plan Confirmation. Your Plan Confirmation will be provided to you at or around the time of purchase or sent to you automatically thereafter. If you purchased your plan from Apple, you may obtain a copy of your Plan Confirmation by following the instructions and entering your Covered Device's serial number at www.apple.com/support/applecare/view.

3. What is Covered?

3.1 Hardware Service

If during the Plan Term, you submit a valid claim by notifying Apple that (i) a defect in materials and workmanship has arisen in the Covered Equipment, or (ii) the capacity of the Covered Equipment's battery to hold an electrical charge is less than eighty percent (80%) of its original specifications, Apple will either (a) repair the defect at no charge, using new parts or parts that are equivalent to new in performance and reliability, or (b) exchange the Covered Equipment, with a replacement product that is new or equivalent to new in performance and reliability. All replacement products provided under this Plan will at a minimum be functionally equivalent to the original product. If Apple exchanges the Covered Equipment, the original product becomes Apple's property and the replacement product is your property, with coverage effective for the remaining period of the Plan.

3.2 Accidental Damage from Handling

If during the Plan Term you submit a valid claim notifying Apple that the Covered Device has failed due to accidental damage from handling ("ADH"), Apple will, subject to the service fee described below, either (i) repair the defect using new or refurbished parts that are equivalent to new in performance and reliability, or (ii) exchange the Covered Device with a replacement product that is new or equivalent to new in

performance and reliability (both individually known as a "Service Event"). **ADH coverage will expire and all of Apple's obligations to you under this section 3.2 will be fulfilled in their entirety before the end of the Plan Term when Apple, as a result of ADH claims, has provided to you two (2) Service Events.** ADH coverage only applies to an operational or mechanical failure caused by an accident from handling that is the result of an unexpected and unintentional external event (e.g. drops and damage caused by liquid contact) that arises from your normal daily usage of the Covered Device as intended for such Covered Device. ADH coverage does not include (a) protection against normal wear and tear, theft, misplacement, damages caused by reckless, abusive, willful or intentional conduct associated with handling and use of the Covered Device, (b) protection against any other act or result not covered by the Plan, as described in Section 4.2 below, or (c) any damage to the Covered Device that arises from one or more conditions described in Section 3.2 (a) or (b). Apple may ask you to provide an explanation of where and when the accident occurred with a detailed description of the actual event. Apple will deny your claim if you fail to pay the service fee or fail to provide information relating to the accident when asked.

- **Under AppleCare+ for iPhone, you will pay a \$29 (U.S.) dollar (CA\$39) service fee plus applicable tax for a Screen-only ADH Claim or a \$99 (U.S.) dollar (CA\$129) service fee plus applicable tax for All Other ADH Claim.**
- **Under AppleCare+ for iPad, you will pay a \$49 (U.S.) dollar (CA\$49) service fee plus applicable tax for each ADH claim.**
- **Under AppleCare+ for iPod, you will pay a \$29 (U.S.) dollar (CA\$29) service fee plus applicable tax for each ADH claim.**
- **Under AppleCare+ for Apple Watch, you will pay a \$69 (U.S.) dollar (CA\$89) service fee plus applicable tax for each ADH claim.**

For iPhone Screen-only ADH Claims, the Covered Device must have no additional damage beyond the screen damage, including, but not limited to, bent or dented enclosure, that would prevent Apple from replacing the screen on the Covered Device. Covered Device with additional damage will be charged at the price of the All Other ADH Claims fee.

3.3 Technical Support

During the Plan Term, Apple will provide you with access to telephone and web-based technical support resources. Your Technical Support coverage starts on expiration of the complimentary technical support cover provided by the manufacturer, which starts on the date you purchase the Covered Equipment. Technical support may include assistance with installation, launch, configuration, troubleshooting, and recovery (except for data recovery), including storing, retrieving, and managing files; interpreting system error messages; and determining when hardware service is required or ADH coverage may be applicable. Apple will provide support for the then-current version of the supported software, and the prior Major Release. For purposes of this section, the term "Major Release" means a significant version of software that is commercially released by Apple in a release number format such as "1.0" or "2.0" and which is not in beta or pre-release form.

3.4 Scope of Technical Support

Under the Plan, Apple will provide technical support for the following:

- (i) Covered Equipment,
- (ii) Operating system ("OS") and software applications that are pre-installed with the Covered Equipment ("Consumer Software"),
- (iii) Apple-branded software applications that are designed to operate with the Covered Equipment, including but not limited to Keynote, Pages, Numbers, Photos, iMovie and GarageBand (also referred to as "Consumer Software"), and
- (iv) Connectivity issues between the Covered Equipment and a Supported Computer. A "Supported Computer" means a computer that meets the Covered Equipment's connectivity specifications and runs an operating system supported by the Covered Equipment.

4. What is not Covered?

4.1 Hardware Service and ADH Coverage Area. Under AppleCare+ for iPhone, AppleCare+ for iPad, AppleCare+ for Apple Watch, Apple may restrict hardware service and ADH coverage to the country where the Covered Device was originally purchased.

4.2 Hardware Coverage and ADH Coverage

- (i) The Plan does not apply to installation, removal or disposal of the Covered Equipment, or provision of equipment while the Covered Equipment is being serviced.
- (ii) The Plan does not apply to damage caused by (a) a product that is not the Covered Equipment, (b) abuse, misuse, fire, earthquake or other external causes except as described in section 3.2 above, (c) operating the Covered Equipment outside the permitted or intended uses described by the manufacturer, or (d) service performed by anyone who is not a representative of Apple or an Apple Authorized Service Provider ("AASP").
- (iii) The Plan does not apply to a product with a serial number that has been altered, defaced or removed, or has been modified to alter its functionality or capability without the written permission of the manufacturer.
- (iv) The Plan does not apply to Covered Equipment that has been lost or stolen. This Plan only applies to Covered Equipment returned to Apple in its entirety.
- (v) The Plan does not apply to cosmetic damage to the Covered Equipment, including but not limited to scratches and dents that do not otherwise affect the functionality of the Covered Equipment.
- (vi) The Plan does not apply to preventative maintenance on the Covered Equipment.
- (vii) The Plan does not apply to defects caused by normal wear and tear or which is otherwise due to normal aging of the product, and
- (viii) The Plan does not apply to a pre-existing condition on any Covered Equipment if you purchased the Plan after you purchased the Covered Equipment.

Important: Do not open the Covered Equipment, as damage caused as a result of opening the equipment is not covered by this Plan. Only Apple or an AASP should perform service on the Covered Equipment.

4.3 Technical Support

- (i) The Plan does not include Technical Support for your use of the OS and Consumer Software as server-based applications.
- (ii) The Plan does not include Technical Support for issues that could be resolved by upgrading software to the then current version.
- (iii) The Plan does not include Technical Support for third-party products or their effects on or interactions with the Covered Equipment, the OS or Consumer Software.
- (iv) The Plan does not include Technical Support for your use of a computer or operating system that is not related to Consumer Software or to connectivity issues with the Covered Equipment.
- (v) The Plan does not include Technical Support for Apple software other than the OS or Consumer Software, as covered under the Plan.
- (vi) The Plan does not include Technical Support for OS software or any Apple-branded software designated as "beta," "prerelease," or "preview" or similarly labeled software, and
- (vii) The Plan does not include Technical Support for damage to, or loss of any software or data that was residing or recorded on the Covered Equipment. The Plan does not cover the recovery or reinstallation of software programs and user data.

5. How to Obtain Service and Support?

You may obtain hardware services, which include those relating to ADH coverage and technical support, by accessing the Apple website (www.apple.com/support/country/) or calling the telephone number listed below. If you call, you must provide Apple the Plan Agreement Number or Covered Equipment serial number. You need to keep your Plan Confirmation document and the original sales receipt for your Covered Equipment and your Plan, as they will be required if there is any question as to your Covered Equipment's eligibility for coverage.

6. Service Options.

6.1 Apple will provide hardware services to you through one or more of these options:

- (i) Carry-in service. Carry-in service is available for most Covered Equipment products. Return the Covered Equipment to an Apple-owned retail store location or to an AASP that offers carry-in service. Service will be performed for you at the store, or the store may send the Covered Equipment to an Apple repair service ("ARS") site for service. Once you are notified that service is complete, you will promptly retrieve the Covered Equipment.
- (ii) Mail-in service. Direct mail-in service is available for most Covered Equipment products. If Apple determines that your Covered Equipment is eligible for mail-in service, Apple will send you prepaid waybills (and, if needed, packaging material) and you must ship the Covered Equipment to an ARS site in accordance with Apple's instructions. Once service is complete, the ARS site will return the Covered Equipment to you. Apple will pay for shipping to and from your location if you follow all instructions.
- (iii) Express Replacement Service ("ERS") or do-it-yourself ("DIY") parts service. ERS is available for certain Covered Equipment products. ERS is not available for iPhone Screen-only ADH claims. DIY parts service is available for many Covered Equipment parts or accessories, and this will allow you to service your own Covered Equipment. If ERS or DIY parts service is available, the following process will apply.
 - (a) Service where Apple requires return of the replaced Covered Equipment or part. Apple may require a credit card authorization to serve as security for the retail price of the replacement Covered Equipment or part and applicable shipping costs. If you are not able to provide credit card authorization, service may not be available to you and Apple will offer an alternative arrangement for service. Apple will ship a replacement Equipment or part to you with installation instructions, if applicable, and any requirements for the return of the replaced Covered Equipment or part. If you follow the instructions, Apple will cancel the credit card authorization, so you will not be charged for the Covered Equipment or part and shipping to and from your location. If you fail to return the replaced Covered Equipment or part as instructed or return a replaced Covered Equipment or part that is ineligible for service, Apple will charge the credit card for the authorized amount.
 - (b) Service where Apple does not require return of the replaced product or part. Apple will ship you free of charge a replacement product or part accompanied by instructions for installation, if applicable, and any requirements for the disposal of the replaced product or part.
 - (c) Apple is not responsible for any labor costs you incur in respect to ERS or DIY parts service. Should you require further assistance, you should contact Apple at the telephone number listed below.

6.2 Apple reserves the right to change the method by which Apple may provide repair or replacement service to you, and your Covered Equipment's eligibility to receive a particular method of service. Service will be limited to the options available in the country where you request service. Service options, parts availability and response times may vary according to country. If service is not available for the Covered Equipment in a country that is not the country of purchase, you may be responsible for shipping and handling charges to facilitate service to a country where service is available. If you seek service in a country that is not the country of purchase, you must comply with all applicable import and export laws and regulations and be responsible for all custom duties, V.A.T. and other associated taxes and charges. For international service, Apple may repair or exchange products and parts with comparable products and parts that comply with local standards.

7. Your Responsibilities

To receive service or support under the Plan, you agree to comply with each of the terms listed below.

- (i) You will provide your Plan Agreement Number and a copy of your Plan's original proof of purchase, if requested.
- (ii) You will provide information about the symptoms and causes of the issues with the Covered Equipment.
- (iii) You will respond to requests for information, including but not limited to the Covered Equipment serial number, model, version of the operating system and software installed, any peripherals devices connected or installed on the Covered Equipment, any error messages displayed, the actions which were taken before the Covered Equipment experienced the issue and the steps taken to resolve the issue.
- (iv) You will follow instructions Apple gives you, including but not limited to refraining from sending Apple products and accessories that are not subject to repair or replacement service and packing the Covered Equipment in accordance with shipping instructions.

- (v) You will update software to currently published releases prior to seeking service.
- (vi) You will make sure to back up software and data residing on the Covered Equipment. DURING HARDWARE SERVICE, APPLE WILL DELETE THE CONTENTS OF THE COVERED EQUIPMENT AND REFORMAT THE STORAGE MEDIA. Apple will return your Covered Equipment or provide a replacement as the Covered Equipment was originally configured, subject to applicable updates. Apple may install OS updates as part of hardware service that will prevent the Covered Equipment from reverting to an earlier version of the OS. Third party applications installed on the Covered Equipment may not be compatible or work with the Covered Equipment as a result of the OS update. You will be responsible for reinstalling all other software programs, data and passwords.

8. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, APPLE AND ITS EMPLOYEES AND AGENTS WILL UNDER NO CIRCUMSTANCES BE LIABLE TO YOU OR ANY SUBSEQUENT OWNER OF THE COVERED EQUIPMENT FOR ANY INDIRECT OR CONSEQUENTIAL DAMAGES, INCLUDING BUT NOT LIMITED TO COSTS OF RECOVERING, REPROGRAMMING, OR REPRODUCING ANY PROGRAM OR DATA OR THE FAILURE TO MAINTAIN THE CONFIDENTIALITY OF DATA, ANY LOSS OF BUSINESS, PROFITS, REVENUE OR ANTICIPATED SAVINGS, RESULTING FROM APPLE'S OBLIGATIONS UNDER THIS PLAN. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE LIMIT OF APPLE AND ITS EMPLOYEES' AND AGENTS' LIABILITY TO YOU AND ANY SUBSEQUENT OWNER ARISING UNDER THE PLAN SHALL NOT EXCEED THE ORIGINAL PRICE PAID FOR THE PLAN. APPLE SPECIFICALLY DOES NOT WARRANT THAT (i) IT WILL BE ABLE TO REPAIR OR REPLACE COVERED EQUIPMENT WITHOUT RISK TO OR LOSS OF PROGRAMS OR DATA, (ii) IT WILL MAINTAIN THE CONFIDENTIALITY OF DATA, OR (iii) THAT THE OPERATION OF THE PRODUCT WILL BE UNINTERRUPTED OR ERROR-FREE.

FOR CONSUMERS IN JURISDICTIONS WHO HAVE THE BENEFIT OF CONSUMER PROTECTION LAWS OR REGULATIONS, THE BENEFITS CONFERRED BY THIS PLAN ARE IN ADDITION TO ALL RIGHTS AND REMEDIES PROVIDED UNDER SUCH LAWS AND REGULATIONS. TO THE EXTENT THAT LIABILITY UNDER SUCH LAWS AND REGULATIONS MAY BE LIMITED, APPLE'S LIABILITY IS LIMITED, AT ITS SOLE OPTION, TO REPLACEMENT OR REPAIR OF THE COVERED EQUIPMENT OR SUPPLY OF THE SERVICE. SOME STATES OR PROVINCES DO NOT ALLOW THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO SOME OR ALL OF THE ABOVE LIMITATIONS MAY NOT APPLY TO YOU.

9. Cancellation

9.1 Single Pay Plans

You may cancel this Plan at any time for any reason. If you decide to cancel this Plan, you may call Apple at the telephone number below to do so, or you may send or fax written notice with your Plan Agreement Number to AppleCare Administration, P.O. Box 149125, Austin, TX 78714-9125, U.S. (fax number 916-405-3973). You must send a copy of the Plan's original proof of purchase with your notice. Unless local law provides otherwise, cancellation refunds will be provided as follows:

- i) if you cancel within thirty (30) days of your Plan's purchase, or receipt of this Plan, whichever occurs later, you will receive a full refund less the value of any service provided under the Plan.
- ii) If you cancel more than thirty (30) days after your receipt of this Plan, you will receive a pro rata refund of the original purchase price. The pro rata refund is based on the percentage of unexpired Plan Term from the Plan's date of purchase, less (a) a cancellation fee of twenty-five (\$25) dollars or ten percent (10%) of the pro-rata amount, whichever is less, and (b) the value of any service provided to you under the Plan.

Unless applicable local law provides otherwise, Apple may cancel this Plan for fraud or material misrepresentation. Unless applicable local law provides otherwise, Apple may also cancel this Plan if service parts for the Covered Equipment are not available, upon thirty (30) days prior written notice. If Apple cancels this Plan for the unavailability of service parts, you will receive a pro-rata refund for the Plan's unexpired term.

9.2 Monthly Pay Plans

You may cancel this Plan at any time for any reason. If you purchased a Monthly Pay Plan from any seller other than Apple directly (that is, a "Reseller"), contact the Reseller to cancel your Plan. If you purchased a Monthly Pay Plan from Apple, you may cancel by calling Apple by telephone (see number below) or by sending or faxing notice with your Plan Agreement Number and original proof of purchase to Apple.

Hard copy cancellations should be mailed to AppleCare Administration, P.O. Box 149125, Austin, TX 78714-9125, U.S. or by faxing notice to 916-405-3973. Unless applicable local law provides otherwise, if you have made advance payments, cancellation will be deferred until midnight on the last day of the month for which the last monthly payment was paid. Your failure to timely and fully make any monthly payment will be deemed an expression of your intent to cancel your Plan consistent with the schedule described in this section.

9.3 Effect of Cancellation

Upon the effective date of your early cancellation, Apple's future obligations under this Plan to you are fully extinguished.

10. Transfer of Plan

Subject to the restrictions set forth below, you may make a one-time permanent transfer of all of your rights under the Plan to another party, provided that: (a) you transfer to the other party the original proof of purchase, the Plan's Confirmation, the Plan's printed materials and this service contract; (b) you notify Apple of the transfer by sending, faxing or e-mailing notice of transfer to Apple Inc., ATTN: Agreement Administration, MS: 217-AC, 2511 Laguna Blvd, Elk Grove, CA 95758, U.S., fax number 916-405-3655 or agmts_transfer@apple.com, respectively, and (c) the other party accepts the terms of this service contract. Additionally, with regard to Monthly Pay Plans, the transferee must assume and comply with all remaining payment obligations of the transferor, and any failure to do so by a transferee shall immediately trigger the cancellation provisions applicable to Monthly Pay Plans, as described in Section 9.2 and 9.3. When notifying Apple of the transfer, you must provide the Plan Agreement Number, the serial number of the Covered Equipment, and the name, address, telephone number and email address of the new owner.

11. General Terms

- (i) Apple may subcontract or assign performance of its obligations to third parties but shall not be relieved of its obligations to you in doing so.
- (ii) Apple is not responsible for any failures or delays in performing under the Plan that are due to events outside Apple's reasonable control.
- (iii) You are not required to perform preventative maintenance on the Covered Equipment to receive service under the Plan.
- (iv) This Plan is offered and valid only in the fifty states of the United States of America and the District of Columbia and all provinces and territories of Canada. Persons who have not reached the age of majority may not purchase this Plan. This Plan may not be available in all states of the United States and in all provinces and territories of Canada, and is not available where prohibited by law.
- (v) In carrying out its obligations Apple may, at its discretion and solely for the purposes of monitoring the quality of Apple's response, record part or all of the calls between you and Apple.
- (vi) You agree that any information or data disclosed to Apple under this Plan is not confidential or proprietary to you. Furthermore, you agree that Apple may collect and process data on your behalf when it provides service. This may include transferring your data to affiliated companies or service providers in accordance with the Apple Customer Privacy Policy.
- (vii) Apple has security measures, which should protect your data against unauthorized access or disclosure as well as unlawful destruction. You will be responsible for the instructions you give to Apple regarding the processing of data, and Apple will seek to comply with those instructions as reasonably necessary for the performance of the service and support obligations under the Plan. If you do not agree with the above or if you have questions regarding the processing of your data, contact Apple at the telephone numbers provided.
- (viii) **Apple will protect your information in accordance with Apple Customer Privacy Policy available at www.apple.com/legal/privacy/. If you wish to have access to the information that Apple holds concerning you or if you want to make changes, access appleid.apple.com to update your personal contact preferences or you may contact Apple at www.apple.com/privacy/contact.**
- (ix) The terms of the Plan, including the original sales receipt of the Plan and the Plan Confirmation, shall prevail over any conflicting, additional, or other terms of any purchase order or other document, and constitute your and Apple's entire understanding with respect to the Plan.

- (x) Apple is not obligated to renew this Plan. If Apple does offer to renew this Plan, it will determine the price and terms.
- (xi) There is no informal dispute settlement process available under this Plan.
- (xii) "Apple" is **AppleCare Service Company, Inc.**, an Arizona corporation with its registered office at c/o C T Corporation System, 3800 N. Central Avenue, Suite 460, Phoenix, Arizona 85012, doing business in the state of Texas as Apple CSC, Inc., for Plans sold in the United States. The obligations of all Plans sold in the United States are backed by the full faith and credit of the provider, AppleCare Service Company, Inc. "Apple" is Apple Canada Inc., with offices at 120 Bremner Blvd., suite 1600, Toronto, Ontario M5J 3A6. for Plans sold in Canada. Apple Canada Inc. is the legal and financial obligor for Plans sold in Canada.
- (xiii) The Administrator is Apple Inc. (the "Administrator" TDLR License #300), a California corporation with its registered office at 1 Infinite Loop, Cupertino, California 95014. The Administrator is responsible for the collection and transfer to AppleCare Service Company, Inc. of the purchase price for the Plan and for the administration of claims under the Plan.
- (xiv) Except where prohibited by law, the laws of the State of California govern Plans purchased in the United States. The laws of the province of Ontario govern Plans purchased in Canada except where prohibited by law. If these terms are inconsistent with the laws of any jurisdiction where you purchase this Plan, including the laws of Arizona, Florida, Georgia, Nevada, Oregon, Vermont, Washington, Wisconsin and Wyoming, then the laws of that jurisdiction will control.
- (xv) Support services under this Plan may be available in English and French only.

12. Country, Province and State Variations

One or more of the terms that appear below may apply to the Plan. The terms below may vary from one or more of the terms that appear above this section. The following country, province or state variations will control if inconsistent with any other provisions of this Plan:

12.1 Canada

In Canada, the service fee for each ADH Claim as described in section 3.2 is (i) forty-nine (CDN\$49) Canadian dollars plus applicable tax for AppleCare+ for iPad, (ii) thirty-nine (CDN\$39) Canadian dollars plus applicable tax for AppleCare+ for iPhone for a Screen-only Damage Claim, (iii) one-hundred-twenty-nine (CDN\$129) Canadian dollars plus applicable tax for AppleCare+ for iPhone for All Other ADH Claim (iv) twenty-nine (CDN\$29) Canadian dollars plus applicable tax for AppleCare+ for iPod, and (v) eighty-nine (CDN\$89) Canadian dollars plus applicable tax for AppleCare+ for Apple Watch. The cancellation fee described in section 9 is twenty-five (CDN\$25) Canadian dollars or ten percent (10%) of the pro-rata amount, whichever is less.

Quebec Residents.

The laws of the Province of Quebec will govern this Plan and any disputes arising under it. The section "Limitation of Liability" is not applicable to residents of Quebec.

12.2 United States

Alabama, Arkansas, California, Colorado, Hawaii, Maine, Maryland, Massachusetts, Minnesota, Missouri, New Jersey, New Mexico, Nevada, New York, South Carolina, Texas, Washington and Wyoming Residents.

If you purchased the Plan in one of these states, this term applies to the Plan.

If you cancel this Plan pursuant to these terms and conditions, and Apple fails to refund the purchase price to you within the time period specified below Apple will pay you a penalty of 10% per month for the unpaid amount due and owing. For California, New York, Missouri and Washington residents Apple will provide a refund within 30 days. For Alabama, Arkansas, Colorado, Hawaii, Maine, Maryland, Massachusetts, Minnesota, Nevada, New Jersey, South Carolina, Texas and Wyoming residents, Apple will provide a refund within 45 days. For New Mexico residents, Apple will provide a refund within 60 days. The right to cancel and receive this penalty payment only applies to the original owner of the Agreement and may not be transferred or assigned. The obligations of the provider under this service contract are backed by the full faith and credit of the provider, AppleCare Service Company, Inc.

California Residents.

If you purchased the Plan in this state, this term applies to the Plan.

If you cancel this Plan within thirty (30) days of your Plan receipt, you will receive a full refund less the value of any service provided under the Plan.

Colorado Residents.

If you purchased the Plan in this state, this term applies to the Plan.

Notice: This Plan is subject to the Colorado Consumer Protection Act or the Unfair Practices Act, Articles 1 and 2 of Title 6, CRS.

Connecticut Residents.

If you purchased the Plan in this state, this term applies to the Plan.

The expiration date of the Plan will automatically be extended by the period that the Covered Equipment is in Apple's custody while it is being serviced. Resolution of Disputes: Disputes may be resolved by arbitration. Unresolved disputes or complaints may be mailed, with a copy of this Plan, to State of Connecticut, Insurance Dept., P.O. Box 816, Hartford, CT 06142-0846, Attn: Consumer Affairs.

Florida Residents.

If you purchased the Plan in this state, this term applies to the Plan.

The laws of the State of Florida will govern this Plan and any dispute arising under it. The rate that is charged for this Plan is not subject to regulation by the Florida Office of Insurance Regulation.

No cancellation fee will be imposed in the event of a cancellation.

Michigan Residents.

If you purchased the Plan in this state, this term applies to the Plan.

If performance of the service contract is interrupted because of a strike or work stoppage at the company's place of business, the effective period of the service contract shall be extended for the period of the strike or work stoppage.

Nevada Residents.

If you purchased the Plan in this state, this term applies to the Plan.

Cancellations: No Plan that has been in effect for at least 70 days may be canceled by the provider before the expiration of the agreed term or one year after the effective date of the Plan, whichever occurs first, except on the following grounds:

- a. Failure by the holder to pay an amount due;
- b. Conviction of the holder of a crime, which results in an increase in the service required;
- c. Discovery of fraud or material misrepresentation by the holder in obtaining the Plan, or in presenting a claim for service thereunder;
- d. Discovery of an act or omission by the holder, or a violation by the holder of any condition of the Plan, which occurred after the effective date of the Plan and which substantially and materially increases the service required under the Plan.
- e. A material change in the nature or extent of the required service or repair which occurs after the effective date of the Plan and which causes the required service or repair to be substantially and materially increased beyond that contemplated at the time that the Plan was issued or sold.

Grounds for cancellation; date cancellation effective. No cancellation of a service contract may become effective until at least 15 days after the notice of cancellation is mailed to the holder.

If you have not made a claim and you return this contract to us, either within 20 days of the date that we mailed the contract to you or within 10 days of the date of purchase if you were given a copy of this contract when you purchased it, then this contract shall be void and we will refund to you the purchase price of the contract.

Cancellation of contract; refund of purchase price; cancellation fee.

- (i) If Apple cancels this Plan, Apple shall refund to Nevada consumers the portion of the purchase price that is unearned. Apple may deduct any outstanding balance on your account from the amount of the purchase price that is unearned when calculating the amount of the refund. If Apple cancels a contract pursuant to NRS 690C.270, it may not impose a cancellation fee.
- (ii) Except as otherwise provided in this section, a Nevada resident who is the original purchaser of this Plan, who submits to Apple a request in writing to cancel the Plan in accordance with the terms of the Plan, shall receive a refund of the portion of the Plan's purchase price that is unearned and Apple will not deduct the value of any service provided.

- (iii) If you request the cancellation of this Plan after the first thirty (30) days of the Plan term, Apple may impose the cancellation fee described in the Plan, but will not deduct the value of any service provided.
- (iv) When Apple calculates the amount of a refund pursuant to subsection (ii), it may deduct from the portion of the purchase price that is unearned (a) any outstanding balance on the account and (b) any cancellation fee imposed pursuant to this Plan. AppleCare Service Company, Inc. backs this Plan for Nevada residents by its full faith and credit.

No prior approval for services or goods covered under the Plan is necessary.

Tax is not applicable in the State of Nevada on the service fee for ADH claims.

New Hampshire Residents.

If you purchased the Plan in this state, this term applies to the Plan.

In the event you do not receive satisfaction under this contract, you may contact the New Hampshire insurance department, by mail at State of New Hampshire Insurance Department, 21 South Fruit Street, Suite 14, Concord NH 03301, or by telephone, via Consumer Assistance, at 800-852-3416.

New Mexico Residents.

If you purchased the Plan in this state, this term applies to the Plan.

Cancellations: No Plan that has been in effect for at least 70 days may be canceled by the provider before the expiration of the agreed term or one year after the effective date of the Plan, whichever occurs first, except on the following grounds:

- a. Failure by the holder to pay an amount due;
- b. Conviction of the holder of a crime, which results in an increase in the service required;
- c. Discovery of fraud or material misrepresentation by the holder in obtaining the Plan, or in presenting a claim for service thereunder;
- d. Discovery of an act or omission by the holder, or a violation by the holder of any condition of the Plan, which occurred after the effective date of the Plan and which substantially and materially increases the service required under the Plan; or
- e. A material change in the nature or extent of the required service or repair which occurs after the effective date of the Plan and which causes the required service or repair to be substantially and materially increased beyond that contemplated at the time that the Plan was issued or sold.

North Carolina Residents.

If you purchased the Plan in this state, this term applies to the Plan.

The purchase of this Plan is not required either to purchase or to obtain financing for the Covered Equipment. Apple Inc. will not cancel this plan EXCEPT for failure to pay the purchase price for the Plan.

Ohio Residents.

If you purchased the Plan in this state, this term applies to the Plan.

Although this service contract is not an insurance policy, the obligations for claims hereunder for Plans sold in Ohio are insured by Illinois National Insurance Co., with an address of 180 Maiden Lane 25th Floor, New York, NY 10038 (Phone Number: 1-800-250-3819). With any correspondence, please provide your phone number and case number, if applicable. You are entitled to make a direct claim against the insurance company if Apple fails to provide service pursuant to a claim sixty (60) days after Apple's receipt of your claim.

Oregon Residents.

If you purchased the Plan in this state, this term applies to the Plan.

In the event you do not receive satisfaction under this contract, you may contact the Oregon Department of Consumer and Business Services by mail at the Department of Consumer and Business Services, Oregon Insurance Division, 350 Winter Street NE, Salem, OR 97301; or by telephone via Consumer Advocacy, at 888-877-4894.

Puerto Rico Residents.

If you purchased the Plan in Puerto Rico, these terms apply to the Plan.

Cancellation of this Plan will not become effective until 15 days after a notice of cancellation is mailed to you.

If you have not made a claim and you return this contract to us, either within 20 days of the date that we mailed the contract to you or within 10 days of the date of purchase if you were given a copy of this contract when you purchased it, then this contract shall be void and we will refund to you the purchase price of the contract.

If you cancel this Plan pursuant to these terms and conditions, and Apple fails to refund the purchase price to you within 30 days Apple will pay you a penalty of 10% per month for the unpaid amount due and owing.

South Carolina Residents.

If you purchased the Plan in this state, this term applies to the Plan.

You may address any unresolved complaints or Plan regulation questions to the South Carolina Department of Insurance, P.O. Box 100105, Columbia, South Carolina 29202-3105, Tel: 1-800-768-3467.

Tennessee Residents.

If you purchased the Plan in this state, this term applies to the Plan.

The Plan Term of this Plan shall be extended the number of days you are deprived of the use of the product because the product is in repair plus two (2) additional workdays.

Texas Residents.

If you purchased the Plan in this state, this term applies to the Plan.

The provider may cancel this Plan with no prior notice for non-payment, misrepresentation or a substantial breach of a duty by the holder relating to the Covered Equipment or its use. You may address any unresolved complaints or contract regulation question to the TX Dept. of Licensing and Regulation, P.O. Box 12157, Austin, TX 78711, U.S.

The Administrator in Texas is Apple Inc., TDLR License. #300.

Wisconsin Residents.

If you purchased the Plan in this state, this term applies to the Plan.

THIS WARRANTY IS SUBJECT TO LIMITED REGULATION BY THE OFFICE OF THE COMMISSIONER OF INSURANCE.

If you cancel this Plan within thirty (30) days of your Plan's purchase, or receipt of these Terms and Conditions, whichever occurs later, you will receive a full refund. If you cancel this Plan more than thirty (30) days after your receipt of the Plan, you will receive a pro-rata refund of the original purchase price, based on the percentage of the unexpired Plan Term, less a cancellation fee of twenty-five (\$25 USD) dollars or ten percent (10%) of the pro-rata amount, whichever is less. No deduction shall be made from the refund for the cost of any service received. Apple will not cancel this Plan EXCEPT for failure to pay the purchase price for the Plan. If Apple cancels the Plan, you will be paid a pro-rata refund for the Plan's unexpired term.

Wyoming Residents.

If you purchased the Plan in this state, this term applies to the Plan.

If Apple cancels this Plan, Apple will mail to you written notice of the cancellation at your last known address contained in Apple's records. Apple will mail this written notice to you no less than ten (10) days prior to the date when the cancellation will take effect. This written notice to you will contain the date when the cancellation will take effect and the reasons for the cancellation. Apple is not obligated to provide prior notice if cancellation is due to nonpayment of the Plan, a material misrepresentation by you to Apple, a substantial breach of your duties under the Plan or a substantial breach of your duties relating to the Covered Equipment or its use.

Disputes that arise under this Plan may be settled in accordance with the Wyoming Arbitration Act.

Telephone Numbers

United States

800-APL-CARE (800-275-2273)

Canada

800-263-3394

* Telephone numbers and hours of operation may vary and are subject to change. You can find the most up-to-date local and international contact information at www.apple.com/contact/phone_contacts.html. Toll-free numbers are not available in all countries.

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